

RISKY BUSINESS Soldiers of the Gorkha Regiment on a patrol along the Line of Control in Jammu & Kashmir

CHANDRADEEP KUMAR

₹10,000 cr
Estimated annual outflow on disability pensions

16,000-plus
Number of cases regarding disability claims pending in various courts

350
Number of MoD petitions challenging disability benefits rejected by the Delhi High Court in the past one year

Last week, the Delhi High Court dismissed yet another MoD petition challenging a disability pension, noting that it had rejected over 350 similar petitions from the ministry in the past year alone. The court warned the MoD of penalties if it continued such litigation, observing the ministry's persistence in filing appeals despite repeated orders by the AFT in favour of veterans. "We find this to be a waste of not only public money but also the time of this court," it observed.

The legal assaults have demoralised India's veterans, many of whom are grappling with injuries sustained in service. "It's not just about pensions; it's about dignity," says a retired officer who fought for years to secure his rightful benefits. Veterans' groups have expressed growing disillusionment. Former army chief Gen. Ved Malik called the trend "very disconcerting", urging the MoD to take corrective action. Lt Gen. D.S. Hooda, former Northern Army commander, warns of the larger implications. "To challenge disability awards for individual soldiers in the highest courts weakens the bond between the soldier and the state. This could have far-reaching repercussions," he says. In November, after adverse reactions from courts, Attorney General R. Venkataramani stated that he is looking into how the MoD files so many cases in courts even in disability pension matters settled by the AFT. But till the MoD's barrage of litigation ends, such statements are cold comfort for the disabled veterans.